

Court, and the motion is **denied** on that ground.

The Court observes that Plaintiff is now self-represented. (8/8/2025 Sub. of Atty.) Plaintiff does not identify himself as an attorney with a California state bar number. A trustee of a family trust may represent himself if the trustee is the sole beneficiary of the family trust. If there are other beneficiaries of a family trust besides the trustee, the trustee cannot be self-represented, as in that circumstance, the trustee would be representing not only himself but also the other beneficiaries of the trust. A non-attorney cannot represent other parties. (See *Donkin v. Donkin* (2020) 47 Cal.App.5th 469, 472 [citing the leading case *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, and stating, "*Ziegler's* rationale is that the trustee was effectively speaking for the interests of the trust beneficiaries in the lawsuit against the mobilehome park and, as a nonlawyer, improperly representing those beneficiaries. (*Ziegler, supra*, 64 Cal.App.4th at pp. 548–549; cf. *Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1519–1520 [a self-represented trustee does not engage in the unauthorized practice of law under *Ziegler* when he is also the sole beneficiary, and thus is not representing the interests of another].)".) The Court on this motion does not have evidence showing whether Zheng is the sole beneficiary of the family trust, and the issue of whether Zheng can be self-represented is moot on the instant motion because the motion fails for other reasons. The Court anticipates issuing an order to show cause to clarify Zheng's status and ability to remain self-represented in pursuing his claims as trustee of his family trust.

3. 9:00 AM CASE NUMBER: C22-02613
CASE NAME: JANE DOE 1 VS. ACALANES UNION HIGH SCHOOL DISTRICT
FOR PROTECTIVE ORDER LIMITING DEPOSITION TESTIMONY
FILED BY: DOE 1, JANE
TENTATIVE RULING:

The motion for a protective order prohibiting or limiting the deposition testimony of "M.M." (as referenced in the Reply papers) is denied. The request for subject matter limits on questioning is denied. The motion for sanctions is also denied.

4. 9:00 AM CASE NUMBER: C23-01988
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST
CONT'D PER TR ON 7/10/26
FILED BY:
TENTATIVE RULING:

Continued by the Court to September 11, 2026.

5. 9:00 AM CASE NUMBER: C24-01630
CASE NAME: ROBERT MILLER VS. SOPHIE HAN
AWARDING ATTORNEY FEES AND COSTS AND ACCRUED INTEREST
FILED BY: MILLER, ROBERT A.
TENTATIVE RULING:

The unopposed motion for an order awarding Attorneys' Fees and Costs and accrued interest is

granted, for attorneys' fees and costs in the amount of \$32,958.29 plus accrued interest since April 18, 2022 – April 18, 2026 in the amount of \$52,912.21, in addition to the judgment amount previously ordered of \$132,282.32. Plaintiff shall lodge with the court a proposed amended judgment.

6. 9:00 AM CASE NUMBER: C25-02941

CASE NAME: BRETT DALY VS. MICHELLE DALY

COMPLAINT

FILED BY: DALY, MICHELLE L.

TENTATIVE RULING:

The Court determines that this action concerns the internal affairs of a trust and orders the case transferred to the Probate Department to be assigned pursuant to its ordinary assignment and calendaring procedures. Accordingly, Defendants Lawrence A. Daly Jr. and Michelle L. Daly's Demurrer to Plaintiff Brett W. Daly's complaint is dropped from calendar without prejudice to Defendants' ability to raise these challenges in the Probate Department.

Background

In September 1975, Lawrence A. Daly Sr. and Charlotte Doyne Daly acquired title as joint tenants to real property at 1199 Ridgewood Drive, Concord, California 94518 (the "Property"). Following the dissolution of their marriage, Lawrence Sr. conveyed his full interest in the Property to Charlotte as her sole and separate property. On May 23, 1994, Charlotte executed the Charlotte Doyne Daly Revocable Living Trust, naming herself as Trustor and Trustee, and designating her three sons, Plaintiff Brett W. Daly, Defendant Lawrence Daly Jr., and Wayne W. Daly, as equal beneficiaries upon her death. On that same date, Charlotte also executed a will consistent with this equal testamentary distribution plan.

Between 1998 and 2002, title to the Property underwent multiple transfers. In August 1998, Charlotte, as Trustee of the 1994 Trust, executed an grant deed conveying the Property to Lawrence Jr. as his separate property. In November 2002, Lawrence Jr. reconveyed the Property to Charlotte as Trustee of the 1994 Trust. The same day, Charlotte, as Trustee, executed a quitclaim deed transferring the Property to Lawrence Jr. and Michelle Daly, as Trustees of the LJ Trust dated April 15, 2001, for no monetary consideration. In June 2011, Charlotte executed an "Estoppel Affidavit" purporting to affirm that the 2002 quitclaim deed was intended as an absolute conveyance.

Plaintiff Brett Daly alleges that Charlotte never intended to permanently divest herself of ownership or alter her estate plan providing equal shares to her three sons. Instead, Plaintiff asserts that Lawrence exercised undue influence, coercion, and manipulation over Charlotte to induce her to transfer the Property to his trust under the false premise that it was a temporary protective measure against creditor collection activity. Plaintiff further alleges that Lawrence's payoff of Charlotte's approximately \$100,175 mortgage was understood by Charlotte as a gift of family support rather than consideration for a purchase. Relying on the understanding that the family estate remained intact, Plaintiff allegedly invested over \$96,000 in maintenance and substantial home improvements to the Property while his son lived there as Charlotte's caregiver.

Charlotte died in May 2024. Plaintiff alleges he only discovered the transfer of the Property to the LJ Trust around the time of Charlotte's death, having previously been kept in the dark by Lawrence. Following the death, Lawrence asserted exclusive ownership of the Property and offered Plaintiff a